

25STCV22547 25STCV22547

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Case Number: 25STCV22547 Hearing Date: July 8, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: July 8, 2026

Case Name: Cindy Contreras

v. King Taco Restaurant, Inc., et al.

Case No.: 25STCV22547

Motion: Demurrer to

the Second Amended Complaint

Moving Party: Defendants King Taco

Restaurants, Inc. and Raquel Martinez

Responding Party: Plaintiff Cindy Contreras

Notice: OK

Ruling: The Demurrer to

the Second Amended Complaint is overruled. Defendants are ordered to answer in 20 days.

Moving party to

give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

Plaintiff Cindy Contreras was employed by Defendant King Taco Restaurant, Inc. ("King Taco") from July 28, 2008 through October 28, 2024. Defendant Raquel Martinez was Defendant King Taco's General Manager during Plaintiff's employment. Plaintiff alleges Defendant Martinez asked her to participate in an internal investigation of Plaintiff's direct supervisor, Lizbeth Gutierrez. Plaintiff participated in the investigation and confirmed and reported Gutierrez's use of discriminatory and homophobic remarks at work. Plaintiff later reported Defendant Martinez to Gutierrez for creating an unsafe work environment after Plaintiff witnessed an altercation between Defendant Martinez and a vendor. Plaintiff alleges that after reporting Defendant Martinez, Defendant Martinez retaliated against her and divulged to her confidential statements regarding Gutierrez's homophobic remarks to Gutierrez. Plaintiff alleges the work environment became so hostile, intimidating and unbearable that she felt compelled to resign on October 28, 2024 after sixteen (16) years of service.

On July 31, 2025, Plaintiff filed this action against Defendants King Taco and Martinez. On November 7, 2025, Plaintiff filed a First Amended Complaint. On March 18, 2026, the Court sustained demurrer without leave to amend to Plaintiff's sixth and seventh causes of action for retaliation (Labor Code §98.6) and retaliation (Labor Code §§1102.5, 1102.6) and sustained demurrer with 30 days leave to amend to the first through fifth and eight causes of action.

On April 17, 2026, Plaintiff filed a Second Amended Complaint ("SAC") alleging (1) Discrimination in Violation of Gov't Code §§ 12940 et seq.; (2) Harassment in Violation of Gov't Code §§ 12940 et seq.; (3) Retaliation in Violation of Gov't Code §§ 12940 et seq.; (4) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of

Gov't Code §§ 12940(k); (5) Declaratory Judgment; and (6) Constructive Wrongful Discharge in Violation of Public Policy.

On May 19, 2026, Defendants filed a demurrer to the SAC. On June 24, 2026, Plaintiff filed an opposition. On June 30, 2026, Defendant filed a reply.

DISCUSSION

Applicable Law

"The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted in a complaint or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) The Court looks to whether "the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (Id.) The Court does not "read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint 'as a whole and its parts in their context.' [Citation.]" (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804.) The Court "assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (Harris, supra, 56 Cal.4th p. 240.) "The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]" (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

Application to Facts

Defendants demur to the SAC on grounds that (1) Plaintiff fails to establish an adverse employment action under FEHA; (2) Plaintiff fails to establish a causal link for retaliation; (3) Plaintiff fails to establish a protected characteristic for her discrimination and harassment claims; (4) Plaintiff fails to establish that she suffered “severe and pervasive” harassment within FEHA; (5) Plaintiff’s derivative FEHA claims fail as a matter of law; and (6) Plaintiff fails to establish constructive discharge.

Plaintiff sufficiently alleges adverse employment action

An adverse employment action is one that materially affects the terms, conditions, or privileges of employment. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1036, 1051.) What constitutes an adverse employment action “is not, by its nature, susceptible to a mathematically precise test,” and, as a result, the “significance of particular types of adverse actions must be evaluated by taking into account the legitimate interest of both the employer and employee.” (*Id.* at 1054; *Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092, 1106.) “The inquiry as to whether an employment action is adverse requires a case-by-case determination based upon objective evidence.” (*Thomas v. Dept. of Corrections* (2000) 77 Cal.App.4th 507, 510.)

“Minor or relatively trivial adverse actions or conduct by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable, but adverse treatment that is reasonably likely to impair a reasonable employee’s job performance or prospects for advancement or promotion” qualifies as adverse employment action for purposes of FEHA. (*Yanowitz, supra*, 36 Cal.4th at 1054–1055.)

Where the alleged adverse employment

action consists of multiple acts, each act need not separately constitute an adverse employment action. (Id. at 1055-1056.) The actions must be considered “collectively through consideration of a totality of the circumstances.” (Id. at 1036.) “[A]lthough an adverse employment action must materially affect the terms, conditions, or privileges of employment to be actionable, the determination of whether a particular action or course of conduct rises to the level of actionable conduct should take into account the unique circumstances of the affected employee as well as the workplace context of the claim.” (Id. at 1052 (“Retaliation claims are inherently fact specific, and the impact of an employer’ action in a particular case must be evaluated in context.”))

“In the case of an institutional or corporate employer, the institution or corporation itself must have taken some official action with respect to the employee, such as hiring, firing, failing to promote, adverse job assignment, significant change in compensation or benefits, or official disciplinary action.

An adverse employment action refers not only to ultimate employment actions such as termination or demotion, but also actions that are reasonably likely to adversely and materially affect an employee’s job performance or opportunity for advancement.” (Doe v.

Department of Corrections & Rehabilitation (2019) 43 Cal.App.5th 721, 734.)

Plaintiff alleges multiple acts by

Defendant Martinez, Defendant King Taco’s General Manager, that rose to the level of adverse employment action.

Plaintiff alleges that once she reported Martinez to Gutierrez for creating an unsafe working environment, Defendant Martinez (1) divulged and misrepresented Plaintiffs’ confidential statements made during Defendants’ investigation of Gutierrez for homophobic and discriminatory remarks, with the intention of creating hostility between Gutierrez and Plaintiff and making Plaintiff the target of hostile treatment for associating with and defending her gay co-worker; (2) ignored Plaintiff and gave her the “silent treatment”; (3) spoke to Plaintiff with overt hostility and aggression, making sarcastic and belittling remarks to Plaintiff in front of colleagues and glaring at her in an intimidating manner; (4) revoked Plaintiff’s parking privileges; (5) deliberately changed Plaintiff’s schedule without business justification and with the intent of imposing hardship on Plaintiff by increasing her commute time and travel

costs; and (6) caused Plaintiff to be ostracized by her peers due to Martinez's prominent position and influence at Defendant King Taco. (SAC, ¶¶32, 36.)

Defendants rely on authority involving appeals of motions for summary judgment or jury verdicts. (Yanowitz, supra, 36 Cal.4th at 1036 (affirming Court of Appeal's reversal of trial court's order granting defense summary judgment); Light v. Dept. of Parks & Recreation (2017) 14 Cal.App.5th 75, 92 (reversing in part and affirming in part trial court's order granting defense summary judgment); McRae v. Dept. of Corrections & Rehabilitation (2006) 142 Cal.App.4th 377, 386-388 (reversing jury finding that plaintiff had been subject to an adverse employment action as unsupported by the evidence).)

Whether a course of conduct amounts to adverse employment action is generally a question of fact best resolved on summary judgment or at trial, where evidence can be presented, not demurrer. However, courts have resolved the issue on demurrer.

For example, in Thomas, supra, 177 Cal.App.4th at 512, demurrer was sustained without leave to amend on grounds that plaintiff "failed to allege material changes in the terms of her employment to cause employment injury." (Thomas, supra, 77 Cal.App.4th at 512 (affirming trial court order sustained demurrer without leave to amend).) However, Thomas was decided prior to Yanowitz, which made clear that a totality of the circumstances must be considered in determining whether conduct qualifies as adverse employment action.

In addition, the conduct alleged in Thomas is factually distinguishable from that alleged here. In Thomas, the plaintiff relied on acts that "were one time events, such as a delayed check, an early job change and failure to receive one overtime check" and "other allegations, such as the general assertion that Thomas was assigned more duties than other employees in the same unit, are not accompanied by facts which evidence both substantial and detrimental effect on her employment." (Thomas, supra, 77 Cal.App.4th at 512.)

Here, Plaintiff alleges more than "one time events." Plaintiff alleges a course of conduct that changed the conditions of employment and would likely impair a reasonable employee's job performance.

The Court of Appeals in *Brown v.*

Los Angeles Unified School Dist. (2021) 60 Cal.App.5th 1092

sustained demurrer without leave to amend to the plaintiff's retaliation and discrimination claims for failure to allege any adverse employment action. The plaintiff's allegations of adverse employment action were based on defendant's decision not to reasonably accommodate her complaints. (*Brown*,

supra, 60 Cal.App.5th at 1105.) Plaintiff alleged that defendant's decision

not to accommodate was based on the findings of a third-party consultant. (*Id.* at 1105.) The Court of Appeals found such allegations

did not plead adverse employment action because those actions were "actions taken in by [defendant] in response to the complaint," not "to harm her because of her complaint." (*Id.*) Without more, a defendant's failure to

accommodate and failure to engage meaningfully in the interactive process does not amount to adverse employment action.

(*Id.* at 1107.)

As with *Thomas*, the alleged

adverse employment action in *Brown* is factually distinguishable from the circumstances alleged here. The acts

alleged against *Gutierrez* were not legitimate responses to any complaints. Plaintiff alleges *Gutierrez's* conduct was without business justification and undertaken purely to create hostility towards Plaintiff.

Plaintiff also alleges constructive

discharge, which itself would qualify as an adverse employment action. "Constructive discharge, like actual discharge, is a materially adverse employment action." (*St. Myers v. Dignity Health* (2019) 44

Cal.App.5th 301, 315.) "Constructive

discharge occurs when the employer's conduct effectively forces an employee to resign. Although the employee may say, 'I quit,' the employment relationship is actually severed involuntarily by the employer's acts, against the employee's will. As a result, a constructive discharge is legally regarded as a firing rather than a resignation." (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1244.)

"Under the cases, an employee cannot

simply 'quit and sue,' claiming he or she was constructively discharged. The conditions giving rise to the resignation must be sufficiently extraordinary and egregious to overcome the normal motivation of a competent, diligent, and reasonable employee to remain on the job to earn a livelihood and to serve his

or her employer. The proper focus is on whether the resignation was coerced, not whether it was simply one rational option for the employee.” (Id. at 1246.)

“Although situations may exist where the employee's decision to resign is unreasonable as a matter of law, whether conditions were so intolerable as to justify a reasonable employee's decision to resign is normally a question of fact.”

(Vasquez v. Franklin Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 827.) For

the reasons stated above, the Court cannot find as an issue of law that Plaintiff fails to allege adverse working conditions “so intolerable that any reasonable employee would resign rather than endure such conditions.” (Turner, supra, 7 Cal.4th at 1247.)

Defendants cite to Kruitbosch v.

Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 225 for the proposition that a constructive discharge claim is properly subject to

demurrer. However, Kruitbosch was

only certified for partial publication. Defendants

cite to the unpublished portion of the Kruitbosch opinion discussing the constructive discharge claim. Pursuant

to California Rules of Court Rule 8.1115 subdivision (a), an opinion of the California Court of Appeal that is not certified for publication or ordered published must not be cited or relied on by a court or a party in any other action. (Ca. Rules of Ct. Rule 8.115, subd. (a).)

When viewed collectively and against

the totality of the circumstances, Plaintiff sufficiently alleges Defendants' adverse employment action against her.

In combination, a reasonable juror could conclude that these acts

materially changed the terms of her employment

and were likely to impair a reasonable employee's job performance or prospects for advancement or promotion.

Given the standard applied on demurrer and the fact-specific inquiry

required to determine whether a course of conduct qualifies as an adverse employment action, the Court cannot conclude that the alleged conduct was trivial or minor as a matter of law and did not materially change the terms of Plaintiff's employment.

Plaintiff alleges a causal link
for retaliation

To establish a prima facie case of
retaliation under the FEHA, “a plaintiff must show (1) he or she engaged in a ‘protected
activity,’ (2) the employer subjected the employee to an adverse employment
action, and (3) a causal link existed between the protected activity and the
employer’s action. Once an employee establishes a prima facie case, the
employer is required to offer a legitimate, nonretaliatory reason for the
adverse employment action.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36
Cal.4th 1028, 1042.)

A plaintiff “must produce evidence
sufficient to show that an illegitimate criterion was a substantial factor in
the particular employment decision.” (Harris
v. City of Santa Monica (2013) 56 Cal.4th 203, 232 (quoting Price
Waterhouse v. Hopkins (1989) 490 U.S. 228, 278). “The retaliatory motive is proved by showing
that plaintiff engaged in protected activities, that his employer was aware of
the protected activities, and that the adverse action followed within a
relatively short time thereafter. The
causal link may be established by an inference derived from circumstantial
evidence, such as the employer’s knowledge that the employee engaged in
protected activities and the proximity in time between the protected action and
allegedly retaliatory employment decision.
Essential to a causal link is evidence that the employer was aware that
the plaintiff had engaged in the protected activity.” (Morgan v. Regents of University of Cal.
(2000) 88 Cal.App.4th 52, 69–70.)

Defendants argue there is no causal link between
the alleged protected activity— participation in Defendants’ investigation of
Gutierrez’s use of homophobic slurs in August 2023—and the alleged adverse
employment actions. Defendants argue
there is no causal link alleged, because the adverse employment actions only began
immediately after Plaintiff reported Martinez’s altercation with a vendor to
Gutierrez in September 2023. (SAC, ¶¶25,
29, 31, 32.) Defendants rely in part on
the Court’s order sustaining demurrer to the FAC, which stated “the FAC fails
to allege a causal link between the reporting of the homophobic slur and the
alleged adverse employment action because it alleges mistreatment only after

September of 2023, when Plaintiff reported Martinez's altercation to Gutierrez." (3/18/26 Minute Order.)

Upon reexamination of the allegations and the applicable law, the Court finds Plaintiff sufficiently alleges a causal link between her participation in the investigation of Gutierrez and the adverse employment actions for purposes of demurrer.

The Court is not bound by its earlier ruling and Defendants' decision to demur reopens entirely the question of whether a cause of action is stated. (Carlton v. Dr. Pepper Snapple Group, Inc. (2014) 228 Cal.App.4th 1200, 1211.)

The timing of the adverse employment action and the protected activity does not establish as an issue of law that the protected activity could not have been a substantial factor in Defendant Martinez's adverse employment actions. The protected conduct took place in August 2023.

The adverse employment action occurred in September 2023, only a month later. The timing of the events does not make it impossible or legally untenable that Plaintiff's participation in the investigation of Gutierrez was a substantial factor in Defendant Martinez's adverse employment actions against Plaintiff.

Plaintiff's participation in the investigation of Gutierrez, Plaintiff's complaint to Gutierrez about Defendant Martinez and the onset of the adverse employment actions all occurred within a month or two of one another.

(SAC, ¶31.) The Court cannot determine based on timing alone that Plaintiff's participation in the investigation of Gutierrez was not a substantial factor in Defendants' adverse employment actions against her as an issue of law.

In fact, if anything the close temporal proximity of the alleged protected conduct and the onset of the adverse employment actions support an inference of causation.

"[C]lose temporal proximity between a plaintiff's protected activity and the alleged retaliatory conduct against the plaintiff has been found to support a prima facie case of causation." (LeMere

v. Los Angeles Unified School Dist. (2019) 35 Cal.App.5th 237, 243). In LeMere, the court

acknowledged that federal courts have held that "intervals of more than a few months were too long to support causation."

(Id.) The court found a

“gap of two years is not sufficient as a matter of law to support an inference of causation” and sustained the demurrer to plaintiff’s retaliation for failure to plead a causal link between the protected conduct and the adverse employment action. (Id.)

Defendants also rely on Plaintiff’s allegation that the adverse employment action began “immediately after Plaintiff’s report in September 2023.” (SAC, ¶31.) The allegation is not an admission that the adverse employment action was triggered solely by Plaintiff’s report to Gutierrez about Defendant Martinez’s altercation with the vendor.

In addition, Plaintiff alleges the protected conduct was “participating as a witness in an internal investigation” and “reporting inappropriate behavior in the workplace that made Plaintiff feel uncomfortable.” (SAC, ¶76.) Plaintiff alleges the adverse employment actions were motivated by her “participation as a witness in an internal investigation, reporting inappropriate behavior in the workplace and/or some combination of these factors.” (SAC, ¶78.) Plaintiff alleges facts from supporting the allegation that Defendants were retaliating against her for participating in the investigation, including Defendant Martinez’s knowledge of the protected activity, her punitive disclosure of Plaintiff’s confidential participation in the investigation to create hostility in the workplace against her and her anger towards Plaintiff for reporting her altercation with the vendor and closely associating with and defending a gay coworker. (SAC, ¶¶30 and 31.) While the adverse employment action could well have been motivated solely by Martinez’s anger at being reported, Plaintiff plausibly alleges circumstantial facts from which a jury could reasonably conclude that her participation in the investigation and association with and defense of a gay coworker were also motivating factors.

Plaintiff alleges a protected characteristic for discrimination and harassment claims

Defendants argue Plaintiff fails to allege any facts to support her claim that she was discriminated against and harassed on the basis of her sex or gender. Defendants argue Plaintiff also fails to allege facts to support a protected characteristic based on associational discrimination and harassment.

The SAC is devoid of any allegations that Plaintiff suffered any discrimination or harassment due to her sex or gender. The SAC alleges her sex/gender as the basis for discrimination and harassment but there are no specific allegations of any conduct that would qualify as discrimination or harassment based on her sex/gender.

The SAC alleges Plaintiff was discriminated against and harassed because she associated with her gay male coworker and regularly associated with, supported and defended her gay coworker. (SAC, ¶127.) “Race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, age, sexual orientation, reproductive health decisionmaking, or veteran or military status” includes any of the following:...(3) A perception that the person is associated with a person who has, or is perceived to have, any of those characteristics or any combination of those characteristics.” (Gov. Code, §12926, subd. (o)(3).) Contrary to Defendants’ characterization of Plaintiff’s allegations, Plaintiff does not allege that she “merely observed” the purported workplace hostility against a homosexual male colleague. Plaintiff served as a witness in an investigation of Gutierrez for homophobic remarks and reported Gutierrez’s use of homophobic slurs in the workplace to refer to and harass male coworkers. (SAC, ¶126.) Plaintiff actively participated in an investigation into Gutierrez’s use of homophobic slurs and reported her for using them. Plaintiff “regularly associated with, supported, and defended her gay coworker, who was the target of Gutierrez’s homophobic slurs. (SAC, ¶127.) Plaintiff alleges sufficient facts to establish a protected characteristic based on associational standing under Government Code section 12926 subdivision (o)(3).

Plaintiff’s failure to allege any facts to support her sex or gender discrimination claims within the first and second causes of action for discrimination and harassment are insufficient grounds to sustain demurrer to those causes of action. Plaintiff alleges discrimination and harassment based on association with a person with a protected characteristic based on sexual orientation. “A demurrer will not lie to a part of a cause of action or count.” (5 Witkin, Cal. Proc. (6th ed. 2021) Pleading, § 956, p. 355.)

Plaintiff sufficiently alleges severe and pervasive harassment

Pursuant to Government Code §12940(j)(1), “It is an unlawful employment practice...For an employer...or any other person, because of...sexual orientation....” Pursuant to Government Code §12940(j)(3), “[a]n employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.”

“[D]iscrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 707.)

“[H]arassment consists of a type of conduct not necessary for performance of a supervisory job. Instead, harassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives. Harassment is not conduct of a type necessary for management of the employer's business or performance of the supervisory employee's job.” (Reno v. Baird (1998) 18 Cal.4th 640, 645–646.)

“The law prohibiting harassment is violated when the workplace is permeated with discriminatory intimidation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment...And the issue of whether an employee was subjected to a hostile environment is ordinarily one of fact.” (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 263–64; see also Galvin v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 549, 564 (citing Miller v. Dept. of Corrections (2005) 36 Cal.4th 446, 462).) Whether harassment is sufficiently severe or pervasive is ordinarily one of fact for the trier of fact and a totality of the circumstances must be considered. (Caldera v. Dept. of Corrections and Rehabilitation (2018) 25 Cal.App.5th 31, 38-39.)

Defendants argue a single homophobic slur made in Plaintiff's presence is insufficiently severe and pervasive as a matter of law. However, Plaintiff's harassment

claim is not limited to being present when a single homophobic slur was made. Plaintiff alleges harassment based on the use of "homophobic slurs, ostracism, hostile communications, removal of parking privileges and punitive schedule change." (SAC, ¶166.)

Plaintiff alleges harassment based on witnessing the sexual harassment of her gay coworker, Defendants' disclosure of her participation in the investigation of Gutierrez to Gutierrez, her immediate supervisor, divulging and misrepresenting to Gutierrez what Plaintiff said during the investigation, Defendant Martinez's refusal to greet or interact with Plaintiff, Defendant Martinez's overt hostility and aggression towards Plaintiff whenever interaction could not be avoided, glaring at Plaintiff in an intimidating manner and making sarcastic and belittling remarks about Plaintiff's work in front of colleagues whenever interaction could not be avoided. (SAC, ¶¶36, 38.) Plaintiff alleges Defendant Martinez's conduct, including her disclosure of Plaintiff's participation in the investigation to Gutierrez, her shunning of Plaintiff and her public insults of Plaintiff, was intended to create hostility between Plaintiff and her immediate supervisor, Gutierrez, and other employees. Plaintiff alleges these acts were "frequent," "severe and pervasive," and altered the conditions of Plaintiff's employment and created an abusive and hostile working environment. (SAC, ¶41.)

Plaintiff also alleges harassment based on the removal of parking privileges and punitive schedule changes.

However, such conduct is likely of the type necessary for management of the employer's business or performance of the supervisory employee's job. Defendants do not address this issue, however, because they argue the harassing conduct is limited to a single homophobic slur.

Accepting these allegations as true, reasonable minds could conclude that the harassment was severe and pervasive based on the totality of the circumstances. Plaintiff therefore sufficiently alleges severe and pervasive harassing conduct to state a claim for harassment.

Plaintiff's derivative claims do not fail because they underlying FEHA discrimination, harassment and retaliation claims are sufficiently pled

Defendants argue the derivative claims for failure to prevent discrimination, harassment or retaliation and for a FEHA-based declaratory

judgment fail because the underlying causes of action for FEHA discrimination, harassment and retaliation fail.

However, as stated above, Plaintiff sufficiently states causes of action for FEHA discrimination, harassment and retaliation are sufficiently stated.

CONCLUSION

Defendants' Demurrer is overruled. Defendants are ordered to answer in 20 days.

Moving party to give notice.